SOFTWARE DEVELOPMENT CONTRACT

This Software Development Contract (the "Contract") is made between Quillfeather Code Studio LLC, an independent software studio ("Developer"), and the person or company signing below as client ("Client"). Developer will design and build the web application described in the attached project brief (the "Software").

1. Milestones and payment

Client will pay Developer a fixed fee for each milestone on Client's written acceptance of that milestone:

Milestone 1: Clickable prototype and technical design, due _____, fee $_____.

Milestone 2: Production release, documentation and handover, due _____, fee $_____.

2. Acceptance

Client will test each milestone within ten (10) business days after delivery and either accept it in writing or send a list of specific defects. Developer will fix reported defects that are within the agreed scope at no additional charge. A milestone is accepted if Client does not respond within the test period or uses it in production.

3. Changes

Requests outside the project brief are change requests. Developer will estimate the time and cost of each change request, and will start work on it only after Client approves the estimate in writing. Approved changes are billed at Developer's hourly rate in the project brief.

4. Client materials

Client will provide content, credentials, design assets and feedback promptly. Client confirms it has the right to provide these materials and that their use in the Software will not infringe anyone else's rights.

5. Ownership and licence

When Client has paid all fees, Developer assigns to Client the copyright in the custom code written for the Software. Developer keeps ownership of its pre-existing libraries, tools and general know-how, and grants Client a perpetual, non-exclusive licence to use them as part of the Software. Open-source components remain under their own licences.

6. Warranty

For sixty (60) days after final acceptance, Developer will fix any defect that causes the Software not to work materially as described in the project brief. This warranty does not cover changes made by anyone other than Developer, third-party services, or hosting environments Developer did not configure.

7. Confidentiality

Each party will keep confidential the other party's non-public business and technical information received under this Contract, and will use it only for the project. Developer may show the Software in its portfolio only with Client's written consent.

8. Liability

Neither party is liable for indirect or consequential loss, or for loss of profit, data or goodwill. Developer's total liability under this Contract is limited to the fees paid to Developer under it.

9. Termination

Either party may end this Contract by written notice if the other party materially breaches it and does not fix the breach within fourteen (14) days. If Client ends the Contract for convenience, Client will pay for all completed milestones and for work in progress at the hourly rate.

10. General

Developer is an independent contractor and is responsible for its own taxes. This Contract and the project brief are the entire agreement between the parties. Changes must be in writing. This Contract is governed by the laws of the State of Oregon.

Signed by the parties on the dates written below.

DEVELOPER	**CLIENT**
_____	_____
Signature	*Signature*
_____	_____
Printed name	*Printed name*
_____	_____
Date	*Date*
	_____
	Company (if any)